

**CERTIFICATE OF INCORPORATION
OF
DUTCHMAN'S HARVEST CONDOMINIUM ASSOCIATION, INC.**

FIRST: The name of this corporation is "Dutchman's Harvest Condominium Association, INC." (hereinafter referred to as the "Association").

SECOND: The registered office of the Association in the State of Delaware is 18949 Coastal Highway, Suite 301, Sussex County, Rehoboth Beach, DE 19971, and the registered agent at such address is the Association itself.

THIRD: The nature of the business of the Association is to provide for the operation, management, maintenance, repair and replacement, as applicable, of the Common Areas and the Common Facilities within the Common Areas (collectively the "Association Property") as defined in the Master Declaration of Dutchman's Harvest Condominium dated as of 6/26/25 and recorded in the Office of the Recorder of Deeds in and for Sussex County, Delaware (the "Recorder's Office") in Deed Book 6325, Page 294 as the same may be amended from time to time (as amended, the "Master Declaration"), which Association Property is located in the residential community project known as "Dutchman's Harvest" in Lewes and Rehoboth Hundred, Sussex County, Delaware, (the "Community"). The Community is more particularly bounded and described on that certain Record Plan for Dutchman's Harvest prepared by Davis, Bowen & Friedel, Inc., dated 6/18/25, said plan being recorded in the Recorder's Office at Plot Book 454, Page 39, and as may be amended from time to time (as amended, the "Master Plan"). The activities of the Association, including but not limited to the operation, management, maintenance, repair and replacement, as applicable, of the Association Property shall be in accordance with the applicable provisions of the laws and ordinances of all applicable governmental authorities and pursuant to the provisions and requirements of the Master Declaration and Bylaws.

FOURTH: The Association is not a corporation organized for profit and it shall have no capital stock. The members of the Association shall be the Owners of the Lots (as defined in the Master Declaration and as shown on the Master Plan), but only for so long as they are and remain Owners (hereinafter sometimes referred to as the "members" or "member" as applicable). The members shall be required to pay such assessments as may from time to time be levied by the Executive Board of the Association (the "Board") and as otherwise provided in the Master Declaration and Bylaws. At all the meetings of the Association, the Owners of each Lot shall be entitled collectively to cast such vote or votes as provided for in the Bylaws of the Association, to be recorded in the Recorder's Office, which vote or votes may be cast in person or by proxy.

The Board shall levy an assessment upon the Owners of each Lot for the Association to carry-out its purposes as set forth in the Bylaws of the Association. Such assessment shall, in any year, be apportioned pursuant to a method to be established in the Bylaws of the Association, and it shall be payable in such installments, in advance, and on such date or dates as the Board may fix from time to time. To the extent that any such assessment shall remain unpaid after it is due in any year for which such assessment is made, it shall become a lien on the applicable Lot(s) and may be recovered by appropriate execution and sale of the applicable Lot(s) by the Association or its attorney, or any other right or remedy available at law or in equity, subject nevertheless to any

recorded institutional liens and mortgages. Notwithstanding the foregoing, however, the Board may assess Lots for a partial year in the Association's first year of existence. The Board may also elect to levy from time to time, special assessments pursuant to the relevant provisions in the Bylaws of the Association and the Master Declaration.

Nothing herein shall be regarded as imposing on the members personal liability to the Association's creditors. Nothing herein shall authorize the Association to make levies or assessments except for a proper corporate purpose as set forth in this Certificate of Incorporation, the Bylaws of the Association, or as provided in the Master Declaration, unless this Certificate of Incorporation or the Bylaws of the Association have been amended to expand or change such purpose by the affirmative vote of members entitled to cast not less than sixty-six and two-thirds percent (66 2/3%) of the votes of the members present, in person or by proxy, and voting at a meeting duly called for this purpose.

FIFTH: The name and mailing address of the Incorporator is as follows:

Jonathan E. Horner, Esq.
20184 Phillips Street
Rehoboth Beach, DE 19971

SIXTH: The powers of said Incorporator shall terminate upon the filing of this Certificate of Incorporation. The business and affairs of the Association shall be carried on by the Board. The initial Board shall consist of three (3) Directors. Thereafter, the Board may be expanded to up to five (5) Directors as provided in the Bylaws of the Association. The terms of the Directors may be fixed by the Bylaws of the Association. Any vacancy occurring in the Board may be filled as provided in the Bylaws of the Association. Until such time as successors are elected and qualified, the following persons are to serve as the Directors of the Association, with a mailing address as set forth opposite such Director's name below:

	<u>Name</u>	<u>Address</u>
1.	Tom Tipton	18949 Coastal Highway, Suite 301, Rehoboth Beach, DE 19971
2.	Jaime Zolper	18949 Coastal Highway, Suite 301, Rehoboth Beach, DE 19971
3.	Morin Stegall	18949 Coastal Highway, Suite 301, Rehoboth Beach, DE 19971

SEVENTH: The Association shall have the power to acquire by purchase, devise or donation, or in any other manner, and to dispose of, any property, or property rights, real or personal, and to enter into and perform any and all contracts, leases, licenses or other agreements or undertakings relative to the Association Property, and to mortgage, pledge, restrict the use of, or otherwise encumber or grant and convey easements, declaration of restrictions or other agreements of record with respect to any of its property, and to draw, make, endorse and accept promissory notes and bills of exchange, provided that any such action by the Association shall be for the purpose of carrying out the purposes for which it is incorporated, and provided that any

such action is consistent with the foregoing provisions and the applicable provisions of the Bylaws and the Master Declaration.

EIGHTH: The Association shall be considered a "civic organization" as defined in 9 *Del. C. §8110* (a) (1) and is subject to the following provisions:

- (i) The Association is not organized for profit;
- (ii) No part of the net earnings of the Association shall inure to the benefit of any private shareholder, member or individual; and
- (iii) Upon liquidation or dissolution of the Association, or abandonment by the Association, none of the assets of the Association nor benefits from its property will inure to the benefit of any person or organization except a community chest, public or nonprofit, foundation, government, governmental agency, civic organization, maintenance corporation or other nonprofit organization.

NINTH: To the fullest extent permitted by law, including, without limitation, as provided in Section 102(b)(7) of the General Corporation Law of the State of Delaware, as the same exists or may hereafter be amended, a director or member of the Executive Board of this corporation shall not be personally liable to this corporation or its members for monetary damages for breach of fiduciary duty as a director. If the General Corporation Law of the State of Delaware is amended after the effectiveness of this Certificate of Incorporation to authorize corporate action further eliminating or limiting the personal liability of directors or members of the Executive Board, then the liability of a director or a member of the Executive Board of this corporation shall be eliminated or limited to the fullest extent permitted by the General Corporation Law of the State of Delaware, as so amended. Any repeal or modification of this Article NINTH shall not adversely affect any right or protection of a director or member of the Executive Board of this corporation existing at the time of such repeal or modification or with respect to events occurring prior to such time.

TENTH: (A) As used in this Article TENTH,

- (i) "Covered Person" means any individual who is or was a director, member of the Executive Board, or officer of this corporation or is or was serving at the request of this corporation as a director, member of the Executive Board, officer, employee, or agent of an Other Entity, including, without limitation, service with respect to employee benefit plans.
- (ii) "DGCL" means the General Corporation Law of the State of Delaware.
- (iii) "Loss" means any expense, liability, or loss (including, without limitation, attorney's fees, judgments, fines, amounts paid in settlement, and excise taxes or penalties arising under the Employee Retirement Income Security Act of 1974).

(iv) "Other Entity" means another corporation or a partnership, limited liability company, joint venture, trust, or other enterprise, whether for-profit or nonprofit.

(v) "Proceeding" means any threatened, pending, or completed action, suit, alternative-dispute-resolution procedure, or other proceeding, whether civil, criminal, administrative, or investigative, including, without limitation, any action by or in the right of this corporation, involving a Covered Person (whether as a party, a witness, or otherwise) by reason of the fact that such Covered Person is or was a director, member of the Executive Board, or officer of this corporation or is or was serving at the request of this corporation as a director, member of the Executive Board, officer, employee, or agent of an Other Entity, including, without limitation, service with respect to employee benefit plans.

(B) Any Covered Person shall be indemnified and held harmless by this corporation to the fullest extent permitted by the DGCL, as the same exists or may hereafter be amended (but, in the case of any such amendment, only to the extent that such amendment permits this corporation to provide broader indemnification rights than the DGCL permitted this corporation to provide prior to such amendment), against all Loss reasonably incurred or suffered by such Covered Person in connection with a Proceeding, and such indemnification shall inure to the benefit of such Covered Person's heirs, executors, administrators, and legal or personal representatives; provided, however, that except as otherwise provided in Section (D) of this Article TENTH, this corporation shall indemnify a Covered Person seeking indemnification in connection with a Proceeding (or part thereof) initiated by such Covered Person only if the initiation of such Proceeding (or part thereof) was authorized by the Executive Board of this corporation.

(C) The rights conferred in this Article TENTH shall be contract rights and shall include the right of a Covered Person who is or was a director, member of the Executive Board, or officer of this corporation to be paid by this corporation the expenses (including, without limitation, attorney's fees) incurred by such Covered Person in defending a Proceeding or in prosecuting a suit against this corporation to enforce such Covered Person's rights under this Article TENTH, in each case in advance of the final disposition of such Proceeding or suit; provided, however, that the payment of such expenses incurred by such Covered Person in such Covered Person's capacity as a director, member of the Executive Board, or officer of this corporation (and not in any other capacity in which service is or was rendered by such Covered Person while a director, member of the Executive Board, or officer of this corporation, including, without limitation, service to an employee benefit plan) in advance of the final disposition of such Proceeding or suit shall be made only upon delivery to this corporation of an undertaking by or on behalf of such Covered Person to repay all amounts so advanced if it shall ultimately be determined by a final, non-appealable order of a court of competent jurisdiction that such Covered Person is not entitled to be indemnified under this Article TENTH or otherwise. Such undertaking shall itself be sufficient without the need for further evaluation of any credit aspects of the undertaking or with respect to such advancement.

(D) If (i) a written claim under Section (B) of this Article TENTH is not paid in full by this corporation within sixty (60) days after such claim, together with reasonable evidence

as to the amount of such claim, has been received by this corporation, or (ii) a written claim under Section (C) of this Article TENTH is not paid in full by this corporation within twenty (20) days after such claim, together with reasonable evidence as to the amount of such claim, has been received by this corporation, then at any time thereafter, the Covered Person making such claim may bring suit against this corporation to recover the unpaid amount of such claim, and if successful in whole or in part, such Covered Person shall also be entitled to be paid the expense, including, without limitation, attorney's fees, of prosecuting such suit. It shall be a defense to any such suit, other than a suit brought to enforce a claim for advancement of expenses where the required undertaking, if any is required, has been tendered to this corporation, that such Covered Person has not met the applicable standard of conduct that makes it permissible under the DGCL for this corporation to indemnify such Covered Person for the amount claimed, but the burden of proving such defense shall be on this corporation. Neither the failure of this corporation (including its Executive Board or a committee thereof, independent legal counsel, or its members) to have made a determination prior to the commencement of such suit that indemnification of such Covered Person is proper in the circumstances because such Covered Person has met the applicable standard of conduct set forth in the DGCL, nor an actual determination by this corporation (including its Executive Board or a committee thereof, independent legal counsel, or its members) that such Covered Person has not met such applicable standard of conduct, shall be a defense to such suit or create a presumption that such Covered Person has not met the applicable standard of conduct. In any suit brought by a Covered Person to enforce a right under this Article TENTH, or by this corporation to recover an advancement of expenses, the burden of proving that the Covered Person is not entitled to indemnification or advancement under this Article TENTH or otherwise shall be on this corporation.

(E) The rights to indemnification and the advancement of expenses conferred in this Article TENTH shall not be exclusive of any other right that any person may have or hereafter acquire under any statute, provision of the certificate of incorporation, bylaw, agreement, or vote of members or disinterested directors, or otherwise.

(F) This corporation may maintain insurance, at its expense, to protect itself and any director, member of the Executive Board, officer, employee, or agent of this corporation or of an Other Entity against any Loss, whether or not this corporation would have the power to indemnify such person against such Loss under the DGCL.

(G) In the case of a claim for indemnification or advancement of expenses against this corporation under this Article TENTH arising out of acts, events, or circumstances for which the Covered Person, who was at the relevant time serving as a director, member of the Executive Board, officer, employee, or agent of an Other Entity at the request of this corporation, may be entitled to indemnification or advancement of expenses pursuant to such Other Entity's certificate of incorporation, bylaws, or other governing document, or pursuant to an agreement between such Covered Person and such Other Entity, such Covered Person shall first seek indemnification or advancement of expenses pursuant to any such certificate of incorporation, bylaws, other governing document, or agreement. To the extent that amounts to be paid in

indemnification or advancement to a Covered Person under this Article TENTH are paid by such Other Entity, such Covered Person's right to indemnification and advancement of expenses under this Article TENTH shall be reduced. In the event and to the extent that any Covered Person receives indemnification or advancement of expenses pursuant to this Article TENTH, (i) this corporation shall be subrogated, to the fullest extent permitted by law, to any right of action that such Covered Person may have against any third person respecting the loss so indemnified or the expenses so advanced, and (ii) such Covered Person shall hold in trust for, and pay to, this corporation any amounts that such Covered Person may recover in damages or settlement from any third person respecting the loss so indemnified or the expenses so advanced.

(H) The rights to indemnification and the advancement of expenses conferred in this Article TENTH shall not be eliminated or impaired by an amendment to this certificate of incorporation or the bylaws of this corporation after the occurrence of the act or omission that is the subject of the Proceeding for which indemnification or advancement of expenses is sought.

(I) Whenever possible, each term and provision of this Article TENTH shall be interpreted in such a way as to be effective and valid under applicable law. If any term or provision of this Article TENTH is found to be illegal, or if the application thereof to any person or any circumstance shall to any extent be judicially determined to be invalid or unenforceable, the remainder of this Article TENTH, or the application of such term or provision to persons or circumstances other than those to which its application is judicially determined to be invalid or unenforceable, shall not be affected thereby and shall be valid and enforceable to the fullest extent permitted by law.

(J) A Director shall not be personally liable for monetary damages for a breach of a fiduciary duty as a director unless: (i) such breach constitutes a breach of the duty of loyalty to the Association or its members; (ii) the act or omission was not in good faith or otherwise involved intentional misconduct or a knowing violation of law; or (iii) for any transaction from which the Director derived an improper personal benefit. A Director shall not be liable for a breach of the duty of loyalty for a self-interested transaction if the provisions of 8 *Del. C.* §144 are satisfied.

ELEVENTH: To the fullest extent permitted by law, including, without limitation, as provided in Section 115 of the General Corporation Law of the State of Delaware, as the same exists or may hereafter be amended, and unless this corporation consents in writing to the selection of an alternative forum, any or all claims to which this corporation, a current or former director, member of the Executive Board, or officer thereof, or a current or former member thereof is a party shall be brought solely and exclusively in any or all of the courts in the State of Delaware.

TWELFTH: To the fullest extent permitted by law, in the event that (A) any current or prior member of this corporation, or any person on behalf of any current or prior member of this corporation, (in each case, a "Claiming Party") initiates or asserts any claim or counterclaim (in each case, a "Claim"), or joins in, offers substantial assistance with respect to, or has a direct financial interest in any Claim, in each case against this corporation or any member of this

corporation (and including without limitation any Claim purportedly filed on behalf of this corporation or any member of this corporation), and (B) such Claiming Party (or the third party that received substantial assistance from such Claiming Party or in whose Claim such Claiming Party had a direct financial interest) does not obtain a judgment on the merits that substantially achieves, in substance and amount, the full remedy sought, then such Claiming Party shall be obligated to reimburse this corporation and any such member of this corporation for all fees, costs, and expenses of every kind and description (including without limitation attorney's fees) that this corporation and any such member of this corporation may have incurred in defending against such Claim. In the event that two or more Claiming Parties are subject to such reimbursement obligation with respect to the same Claim, such reimbursement obligation shall be joint and several.

THIRTEENTH: This Certificate of Incorporation may not be amended except by the affirmative vote of members entitled to cast not less than sixty-six and two-thirds percent (66 2/3%) of the votes of the members present, in person or by proxy, and voting at a meeting duly called for this purpose. The power to make, alter or repeal the Bylaws of the Association shall be in the members of the Association as provided in the Bylaws of the Association.

FOURTEENTH: The election of the Directors of the Association need not be by ballot unless the Bylaws of the Association shall so provide.

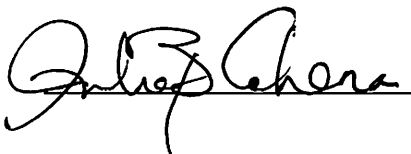
FIFTEENTH: Any capitalized terms not otherwise defined herein shall have the meanings and definitions provided in the Master Declaration.

SIXTEENTH: The Association shall exist perpetually.

THE UNDERSIGNED, being the Incorporator for the purpose of forming a corporation in accordance with Title 8, Chapter 1, of the Delaware Code entitled "General Corporation Law," and the acts amendatory and supplemental thereto, if any, makes and files this Certificate of Incorporation, hereby declaring and ratifying that the facts herein are true, and accordingly, has set his hand and seal the 26th day of June, 2025.

In the Presence of:

Incorporator:


Jonathan E. Horner, Esquire